

Kavar Pal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench (Court No. 3) · 17 May 2022 · Writ - C No. 6742 of 2022 · **Writ disposed with liberty to file a Para 6.8 objection.**

HEADNOTE

A writ challenging a distribution licensee's recovery notice for Rs. 4,09,755 was disposed of without any finding on the demand. The consumer was left free to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided after hearing within the next four weeks, with coercive action stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Kavar Pal approached the Allahabad High Court against the State of Uttar Pradesh and two others to quash a recovery notice dated 10 August 2021 issued by respondent no. 2, the Power Distribution Corporation, for Rs. 4,09,755, and to restrain recovery. Counsel for the Corporation told the Court, on instructions, that the petitioner could file an objection to the impugned demand and that the objection would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Objection to a recovery demand under Para 6.8

HOLDING

Without expressing any opinion on the merits, the writ is disposed of with liberty to the petitioner to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks, along with a certified copy of the order. If submitted in time, the licensee shall decide the objection in accordance with law within the next four weeks after a reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The writ against the recovery demand was disposed of without a merits finding, leaving the consumer to file an objection under Para 6.8 to be decided in accordance with law after hearing, with coercive action stayed in the meantime. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY NOTICE DATED 10 AUGUST 2021 AND THE DEMAND OF RS. 4,09,755

The Court declined to express any opinion on the merits and left the demand to a Para 6.8 objection. ¶ 1